

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

STEPHEN GRANT RUSSELL,
Plaintiff,
-against-
WESTCHESTER COUNTY,
Defendant.

:
:
: Civil Action No. _____
:
: **VERIFIED COMPLAINT**
:
: **JURY TRIAL DEMANDED**
:

NATURE OF THE ACTION

This case is not a custody dispute. It is a civil rights action arising from the deliberate misuse of judicial procedures to deprive a parent of fundamental liberty interests and to suppress speech documenting public judicial records. This case implicates the intersection of the two most protected constitutional domains: the fundamental right to parent, which is second only to life itself in constitutional protection, *Santosky v. Kramer*, 455 U.S. 745, 753 (1982), and political speech on matters of public concern, which lies at the core of the First Amendment. The Appellate Division, Second Department, has already confirmed that critical proceedings were not conducted on default and that the gag order constituted an unconstitutional prior restraint. This action addresses the constitutional consequences of those procedural distortions.

I. JURISDICTION AND VENUE

1. This Court has subject matter jurisdiction under 28 U.S.C. § 1331, as this action arises under the Constitution and laws of the United States, specifically 42 U.S.C. § 1983 and the Fourteenth Amendment to the United States Constitution.

2. Venue is proper in this District under 28 U.S.C. § 1391(b) because a substantial part of the events giving rise to this action occurred in Westchester County, New York, which is within the Southern District of New York.
3. This action does not seek appellate review of state court judgments and is not barred by the Rooker-Feldman doctrine. Plaintiff challenges independent constitutional injuries inflicted by state actors acting under color of law — specifically, the deprivation of procedural due process in proceedings that the Appellate Division, Second Department, has already determined were not conducted on default, and the retaliatory suppression of constitutionally protected speech. These are independent federal claims, not disguised appeals of state court outcomes. See *Exxon Mobil Corp. v. Saudi Basic Indus. Corp.*, 544 U.S. 280, 284 (2005); *Verizon Md., Inc. v. Pub. Serv. Comm’n of Md.*, 535 U.S. 635, 644 n.3 (2002).
4. The domestic relations exception to federal jurisdiction does not apply. This action does not seek to adjudicate custody, visitation, or support. It seeks redress for constitutional violations committed by state actors in the course of Family Court proceedings. See *Marshall v. Marshall*, 547 U.S. 293, 307-08 (2006); *Ankenbrandt v. Richards*, 504 U.S. 689, 704 (1992).
5. Plaintiff does not seek publication of sealed records, confidential child medical records, or attorney-client communications.
- 5A. Plaintiff does not seek vacatur of any state court custody order in this Court. The relief sought is limited to compensatory and declaratory findings regarding the constitutionality of the process by which state court orders were obtained.

5B. The Appellate Division's modification of the gag order does not cure the structural injuries alleged herein. The Second Department addressed only the narrow-tailoring deficiency of the speech restriction; it did not address the procedural void (no default, no hearing), the reliance on a forensic evaluation authored by a credentialed fraud, or the due process violations that preceded and produced the orders under review. Those independent constitutional injuries remain unremedied and are the subject of this action.

5C. Plaintiff has filed a motion in Westchester County Family Court seeking vacatur of the February 2, 2022 custody order pursuant to CPLR § 5015(a)(3) and (a)(4), and has filed Written Objections to subsequent support orders pursuant to FCA § 439(e). These state proceedings challenge procedural and jurisdictional defects in the underlying orders. This federal action seeks damages and declaratory relief for independent constitutional injuries arising from actions taken under color of state law, regardless of the ultimate disposition of those state proceedings. The pursuit of available state remedies reinforces, rather than undermines, the independence of this federal action.

Anticipated Threshold Defenses

6. Judicial Immunity. This Complaint does not seek damages from any judicial officer. No judge is named as a defendant. References to judicial actions in the Statement of Facts are included solely to establish the factual context of the constitutional violations and the pattern of institutional conduct supporting the Monell claim.

7. [Reserved.]

8. Eleventh Amendment. Westchester County is a municipal corporation, not an arm of the State of New York, and is not entitled to Eleventh Amendment sovereign immunity. See *Monell*, 436 U.S. at 690 n.54. No state entity or state court is named as a defendant.

9. Rooker-Feldman. As set forth in Section I, this action challenges independent constitutional injuries, not state court judgments. The Appellate Division's own ruling that the orders were "not entered upon the father's default" confirms that the procedural irregularities alleged here are recognized by the state court system itself.
10. Domestic Relations Exception. This action does not seek to adjudicate custody, modify visitation, or determine support obligations. It seeks redress for constitutional violations committed in the course of Family Court proceedings. *Marshall v. Marshall*, 547 U.S. at 307-08.

II. PARTIES

A. Plaintiff

11. Stephen Grant Russell ("Plaintiff" or "Russell") is a citizen and resident of California. He is the biological father of a minor child, E.R. (born 2017), and holds a valid custody order from the San Francisco Superior Court (Case No. FPT-18-377425).

B. Municipal Defendant

12. Defendant Westchester County is a municipal corporation organized under the laws of the State of New York. It is responsible for the operation, funding, and oversight of the Westchester County Family Court system, including the appointment and credentialing of court-appointed evaluators and the supervision of court-appointed officers. It is sued under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), for policies, customs, and practices that caused the constitutional violations alleged herein.

C. Individual Defendant

13. Donna Genovese, Esq., served as Attorney for the Child (“AFC”) appointed by the Westchester County Family Court in File No. 154703. Her actions are described herein as factual background supporting the Monell claims against Defendant Westchester County.

III. STATEMENT OF FACTS

Note on Citations: Attached exhibits are cited by letter designation (Exhibit A through Exhibit I). Other documents referenced by date and description are materials in Plaintiff’s evidence archive, copies of which will be produced in discovery.

A. Background: California Jurisdiction and Interstate Removal (2017–2018)

14. Plaintiff and Tara Walsh are the parents of E.R., born in 2017 in San Francisco, California.

At all relevant times prior to June 2018, both parents and E.R. resided in San Francisco. (Walsh Sr. email dated June 8, 2018; California custody filing, Case No. FPT-18-377425.)

15. On or about June 8, 2018, Stephen Walsh, Sr. (“Walsh Sr.”), the maternal grandfather, sent Plaintiff an email memorializing the terms of a temporary visit: E.R. would travel to New York for a two-to-three-week visit, with a round-trip ticket confirming return in eleven days. Walsh Sr. wrote: “Works for us — I appreciate your flexibility Steve.” E.R. was not returned to California. (Walsh Sr. email dated June 8, 2018.)

16. On July 12, 2018, Tara Walsh filed a custody petition in Westchester County Family Court through attorney Lydia S. Antoncic (File No. 154703, Docket No. V-07641-18). The petition sought temporary sole custody and invoked emergency jurisdiction under the Uniform Child Custody Jurisdiction and Enforcement Act (“UCCJEA”). (Walsh custody petition, File No. 154703, dated July 12, 2018.)

17. Walsh’s petition was predicated on an allegation that Plaintiff had threatened to kill Walsh and the child. Walsh subsequently recanted this allegation in a letter to the Chappaqua Police Department dated November 23, 2020, writing: “Mr. Stephen Russell never made a threat to kill myself or our daughter Evelyn.” Walsh further acknowledged a “psychiatric condition including post-partum depression.” (Walsh recantation letter to Chappaqua Police Department dated November 23, 2020; Exhibit I.)
18. In text messages dated May 17, 2018, approximately seven weeks before filing the petition, Walsh wrote to associate Rashmi Narendra: “I seriously don’t think Steve ever had a gun it was all in my head I made up the whole thing even the locks — none of it is real” and “I think I’m having post partum psychosis.” These messages directly contradict the emergency jurisdiction allegations. (Text messages to Rashmi Narendra dated May 17, 2018.)
19. Plaintiff had already filed a custody action in California (Case No. FPT-18-377425), which predated the New York filing. California issued an Emergency Protective Order in July 2018. (California Emergency Protective Order, July 2018; Walsh custody petition dated July 12, 2018.)

B. The Griffin Forensic Evaluation (2018–2019)

20. During the pendency of the custody proceedings, the Court relied upon a forensic evaluation prepared by Dr. Raymond Griffin, who held CASAC Credential No. 1636. (Exhibit C; Exhibit D.)
21. On or about February 19, 2019, AFC Jennifer Jackman required completion of the Griffin evaluation as a condition for removing supervised visitation restrictions, despite

Plaintiff's contemporaneous challenge to Griffin's methodology and impartiality.

(Jackman correspondence dated February 19, 2019.)

22. On May 14, 2019, the Court placed Griffin's report under a protective order prohibiting Plaintiff and his counsel from viewing, copying, or quoting from the evaluation. This order prevented Plaintiff from identifying errors or fabrications in the report. (Protective order dated May 14, 2019.)
23. On July 29, 2019, the New York Office of Addiction Services and Supports ("OASAS") issued a summary suspension of Griffin's CASAC credential. On August 16, 2019, OASAS revoked the credential based on nine specific grounds, including: grossly negligent handling of toxicology testing, submission of falsified documentation, unauthorized practice of medicine, misrepresentation as a physician, and exploitation of patients. Griffin signed a Stipulation of Settlement on August 20–23, 2019, completing the voluntary surrender. (Exhibit C.)
24. On August 27, 2021, Judge Schauer acknowledged on the record that Griffin was "a fake doctor" whose work had harmed families. Despite this acknowledgment, the Griffin evaluation was never formally stricken from the record and continued to serve as the basis for restrictions on Plaintiff's parental access. (Exhibit D.)
25. Griffin's pattern of misconduct was not limited to this case. In January 2020, attorney Max DiFabio shared an Order to Show Cause petition from the Veneziano matter, identifying another family affected by Griffin's discredited evaluations and noting "lots of plaintiffs." The Journal News reported that Griffin's findings had cost a parent custody for seven months. (DiFabio correspondence re Veneziano matter, January 2020; Journal News reporting.)

C. Judicial Recusals and Appointment Irregularities (2018–2021)

26. On November 7, 2018, Judge Gordon-Oliver entered a handwritten order conditioning Plaintiff's access to his child on the waiver of criminal charges against Walsh — an unconstitutional condition on a fundamental liberty interest. (Gordon-Oliver handwritten order dated November 7, 2018.)
27. Judge Gordon-Oliver appointed Delia Farquharson as a court-appointed supervisor. Farquharson was subsequently connected to a federal IRS investigation involving Elias Gootzeit, whom Gordon-Oliver also attempted to appoint as a supervisor on July 30, 2019 — one day after Griffin's suspension. Gootzeit, a Mount Vernon School Board Trustee, ultimately refused to serve. (Gootzeit appointment records and IRS investigation documentation.)
28. Judge Gordon-Oliver recused without explanation in late 2019, following the disclosure of the Farquharson-Gootzeit connection. The case was transferred to Judge Morales-Horowitz. (Case transfer documentation, late 2019.)
29. The case was subsequently assigned to four additional judges: Judge Morales-Horowitz, Judge Humphrey, Judge Schauer, and Magistrate Bowman — five judicial officers in total. Three judges (Gordon-Oliver, Morales-Horowitz, Humphrey) recused from the case, and Plaintiff's attorney, Max DiFabio, reported that approximately two-thirds of his practice was eliminated by blanket recusals. (DiFabio correspondence re blanket recusals.)

D. Removal of Favorable Witnesses and Supervisors (2019)

30. Independent supervisors from Children and Family Services ("CFS") observed and documented a strong bond between Plaintiff and E.R. Supervisor Tedla testified in a May

30, 2019 deposition that Walsh “put drugs in [Plaintiff’s] drinks without [his] knowledge” and that Walsh did this “all the time.” Tedla further described an “amazing bond” between father and child. (CFS supervisor reports; Tedla deposition dated May 30, 2019.)

31. Following these favorable reports, the CFS supervisors were removed from the case in February 2019. They were replaced with political appointees, including Farquharson and the proposed Gootzeit appointment. (Tedla deposition; supervisor appointment records, 2019.)

32. On September 21, 2019, newly appointed supervisor Claudette LaMelle conducted her first visit with Plaintiff and E.R. At the exchange location, LaMelle and Plaintiff were confronted by individuals “sitting in a darkened car with its lights off” who began “aggressively yelling.” LaMelle subsequently contacted police, reporting that she “had never experienced such sheer fright.” Walsh’s attorney then unilaterally removed LaMelle as supervisor. (LaMelle incident report dated September 21, 2019.)

E. Default 1: The Morales-Horowitz Proceeding (2020)

33. In approximately March–April 2020, Judge Morales-Horowitz entered a protective order characterized as entered “on default” at a visitation conference, despite Plaintiff’s counsel being present. The order mirrored, in reverse, the California domestic violence restraining order that Plaintiff held against Walsh. (Morales-Horowitz hearing transcripts, 2020.)

34. On January 15, 2021, Plaintiff’s counsel filed a Motion to Vacate Default and Stay Enforcement before Judge Humphrey. AFC Jackman agreed that the orders entered on default should be vacated. (Motion to Vacate Default dated January 15, 2021; Jackman correspondence.)

35. On March 10, 2021, Judge Humphrey signed a motion schedule for the vacatur proceeding, with responsive papers due March 26, 2021. (Motion schedule signed March 10, 2021.)
36. On March 24, 2021, Plaintiff's counsel filed a recusal motion against Judge Humphrey, citing "persistent hostility and personal animus." On April 6, 2021, Judge Humphrey recused from all matters involving DiFabio. The Motion to Vacate Default 1 was never decided. The case was transferred to Judge Schauer. (Humphrey recusal order dated April 6, 2021.)

F. Default 2: The Schauer Proceeding (November 5, 2021)

37. On October 14, 2021, AFC Genovese initiated an Order to Show Cause seeking restrictions on Plaintiff's speech, including blog content and online publications. Opposition was due October 29, 2021, with an in-person appearance set for November 5, 2021. (Genovese Order to Show Cause dated October 14, 2021.)
38. During the period of October 1 through November 11, 2021, multiple email delivery failures were documented affecting communications between Plaintiff and the Court. On October 28, 2021, Plaintiff forwarded a "Delivery Status Notification (Failure)" to court staff, placing the Court on notice that DNS errors were disrupting correspondence eight days before the scheduled hearing. (Email delivery failure notifications, October–November 2021.)
39. On November 4, 2021, court clerk Hernandez sent a Teams meeting invitation for a virtual hearing on File 154703 scheduled for November 5. On the same day or morning of November 5, Hernandez canceled the virtual hearing. A default proceeding was then conducted in lieu of the scheduled hearing. (Teams meeting invitation and cancellation records, November 4–5, 2021.)

39A. The procedural sequence is significant: (1) a virtual hearing was scheduled for November 5, 2021; (2) that hearing was canceled the morning of November 5; (3) a default proceeding was conducted in its place; (4) an inquest was held at which Walsh was the sole witness; (5) permanent orders were entered on February 2, 2022; and (6) Plaintiff's first appeal was dismissed sua sponte on February 4, 2022 — two days after the final order. This six-step procedural cascade — from scheduled hearing to sua sponte appellate dismissal in ninety-two days — is the factual foundation for the due process and retaliation claims alleged herein.

40. At the November 5, 2021 proceeding, AFC Genovese, Walsh and her counsel Christopher Weddle, and Plaintiff's mother Linda Russell with attorney DiFabio all appeared. Plaintiff did not appear personally. The Court entered a gag order and custody order characterized as entered "on default." (Exhibit F; Genovese Order to Show Cause dated October 14, 2021.)

41. On February 2, 2022, the Court entered formal written orders following an inquest on the gag order and custody matters. (Exhibit B.)

G. The January 5, 2022 Inquest

41A. On January 5, 2022, the Court conducted an inquest on the matters addressed in the November 5, 2021 default order. The certified transcript of this proceeding reveals independent procedural defects:

41B. No exhibits were admitted into evidence. The transcript reflects: "No exhibits were marked or admitted into evidence." The Court entered permanent custody and protection orders without a single documentary exhibit in the evidentiary record. (Inquest Transcript, January 5, 2022, p. 2.)

- 41C. Cross-examination was precluded. Plaintiff’s retained counsel, who was physically present in the courtroom, was barred from presenting a defense: “You don’t get to put on a case here. This is an inquest.” (Inquest Transcript, January 5, 2022, pp. 93-94.)
- 41D. Electronic appearance was denied during COVID. Plaintiff was physically unable to return to New York due to documented global flight cancellations during the omicron surge. His counsel requested electronic appearance — a standard accommodation in January 2022 — and was denied: “I’m not permitting your client to appear electronically.” (Inquest Transcript, January 5, 2022, pp. 16-17.)
- 41E. The sole witness was Petitioner Walsh. No independent evidence, no forensic evaluation, and no cross-examination of the complaining witness was permitted. The result is permanent orders entered without evidence, without a defense, and without the respondent’s participation — in a proceeding that was neither a valid default nor a valid hearing.

H. The Appellate Division's Ruling (2023)

42. On appeal, the Appellate Division, Second Department, ruled that the November 5, 2021 orders were “not entered upon the father’s default” because counsel appeared on his behalf and participated in the proceeding. *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d Dep’t 2023). (Exhibit A.)
43. The Appellate Division further found that the gag order restricting Plaintiff’s online publications was not narrowly tailored and constituted an unconstitutional prior restraint on speech. The Court modified the order accordingly. (Exhibit A.)
44. The record now contains five mutually exclusive characterizations of the November 5, 2021 proceeding and the resulting orders:

(1) The trial court (Judge Schauer, January 5, 2022 inquest) characterized the December 3, 2021 Order as “an order on default... a final order.” (Inquest Transcript, p. 92; see also pp. 88, 94.)

(2) Walsh’s own counsel, Christopher Weddle, affirmatively represented to the Appellate Division that “the trial court’s order was issued on default” and argued that the appeal should be dismissed as premature under CPLR § 5511 — on the ground that default orders require a motion to vacate, not a direct appeal. (Exhibit G, Respondent’s Brief, *Matter of Walsh v. Russell*, Appeal No. 2022-02838, Point I, p. 4; Statement of Facts, p. 3.)

(3) AFC Genovese filed a 241-page brief advancing the identical position: “Appellant defaulted with respect to the October 14, 2021 Order to Show Cause” and argued CPLR § 5511 barred the appeal. (Genovese Brief, Appeal No. 2022-02838, Point I, pp. 24-26.)

(4) The Appellate Division, Second Department, expressly rejected the characterizations of the trial court, Walsh’s counsel, and the AFC, holding that the order “was not entered upon the father’s default, inasmuch as his attorney appeared on his behalf at the January 5, 2022, hearing.” 214 A.D.3d at 891. (Exhibit A.)

(5) In February 2026, Support Magistrate Bowman stated on the record that court records indicated “custody was granted after hearing” — a characterization that appears nowhere in the original record, contradicts every prior account, and was never the subject of any judicial determination or stipulation. (Exhibit H, Bowman hearing transcript excerpt, February 3, 2026.)

These five characterizations are mutually exclusive. They cannot all be true. Five institutional actors have offered five incompatible accounts of the same proceeding. This is not ambiguity; it is structural incoherence in the adjudicative process by which a parent’s fundamental rights were restricted.

44A. Judicial Estoppel. Walsh’s own counsel affirmatively represented to the Appellate Division that the custody order was entered on default and that the appeal should therefore be dismissed under CPLR § 5511. The Appellate Division rejected this characterization. Walsh is now judicially estopped from claiming that a valid hearing occurred. See *New Hampshire v. Maine*, 532 U.S. 742, 749 (2001) (judicial estoppel prevents a party from asserting a position inconsistent with one successfully maintained in prior litigation). Yet the court’s internal records were retroactively altered to reflect precisely the characterization Walsh’s counsel had advanced and the Appellate Division had rejected — “after hearing” — without any judicial order, stipulation, or notice to the parties. (Exhibit G; Exhibit A; Exhibit H; court docket comparison records.)

I. Record Alteration and Spoliation (2021–2026)

45. In February 2026, during a support hearing before Magistrate Bowman, the Court stated that internal records indicated “custody was granted after hearing” — contradicting both the trial court’s prior characterization (“on default”), Walsh’s own counsel’s appellate concession (“on default”), and the Appellate Division’s determination (“not entered upon default”). (Exhibit H.)

46. Comparison of court records from different dates reveals that earlier records reflect “on default,” while later records reflect “after hearing.” No order was ever entered amending the procedural designation. No stipulation was reached. No judicial determination was made. The alteration occurred after the Appellate Division had already adjudicated that no default occurred and after the trial court had itself characterized the proceeding as a default three times in the certified transcript. (Court docket comparison records; Inquest Transcript, January 5, 2022.)

- 46A. The chronological sequence demonstrates consciousness of guilt: (i) Walsh’s counsel conceded “on default” in appellate briefing (October 2022); (ii) the Appellate Division rejected the default characterization (2023); (iii) the court’s internal records were retroactively altered to “after hearing” (discovered February 2026); (iv) Magistrate Bowman relied on the altered records to enforce support obligations (February 2026). The record was altered to reflect a characterization that was never judicially determined and that contradicts the certified transcript. A court system that alters its own records rather than addressing the underlying defect demonstrates consciousness of the defect — not its absence.
47. Additional record irregularities include: a protective order extension that was backdated, filings that were removed from the court docket, and a hearing invitation that was created and then canceled on the same day as the default proceeding. (Protective order extension records; hearing invitation and cancellation records.)

J. Continuing Enforcement of Defective Orders (2026)

- 47A. On February 3, 2026, Support Magistrate Bowman conducted a hearing on Plaintiff’s petition for downward modification of child support. Plaintiff presented the Appellate Division decision, the pending motion to vacate, and evidence of the record alteration. The Court acknowledged the record inconsistency but declined to examine the issue, stating it lacked authority to determine “ancillary issues.” The Court dismissed the modification petition. (Exhibit H; Orders of Dismissal dated February 3, 2026 and March 12, 2026.)
- 47B. On March 12, 2026, the Court issued a second order dismissing Plaintiff’s Notice of Related Motion and Request to Stay Enforcement, despite the pending motion to vacate

the underlying custody order. Both orders were mailed on March 19, 2026. (Order of Dismissal dated March 12, 2026.)

47C. The February and March 2026 orders create new, concrete, ongoing injury — income withholding, arrears accumulation, and potential incarceration — all flowing from the same custody order whose procedural identity remains irreconcilable. These proceedings demonstrate that the constitutional violations alleged herein are not historical; they are ongoing and actively generating new harm as of the date of this filing.

K. The San Francisco Jury Verdict and Domestication (2022–2023)

48. On February 22, 2022, a jury in the San Francisco Superior Court (Case No. CGC-18-570137) found Tara Walsh liable for intentional battery, domestic violence, and intentional infliction of emotional distress, with specific findings of malice, oppression, and fraud. The jury awarded \$325,000, later amended to \$332,080.74 in the Second Amended Judgment. (Jury verdict and Second Amended Judgment, Russell v. Walsh, No. CGC-18-570137.)

49. The basis for the jury verdict included Walsh’s admitted covert administration of Seroquel, an antipsychotic medication, to Plaintiff without his knowledge or consent. LabCorp toxicology testing confirmed the presence of Lithium in Plaintiff’s system at approximately six times the upper limit of normal. (LabCorp toxicology report; DVRO hearing transcript dated August 29, 2018; Walsh text to physician, May 2018.)

50. On September 15, 2023, the California Court of Appeal affirmed the verdict and judgment. (California Court of Appeal opinion dated September 15, 2023.)

51. The judgment was subsequently domesticated in New York (Index No. 55523/2023), making the California findings enforceable in this jurisdiction. (Domesticated judgment, Index No. 55523/2023.)

L. Counsel Intimidation and Withdrawal Pattern

52. Over the course of this litigation, Plaintiff has been represented by multiple attorneys and law firms, at least six of which withdrew under circumstances involving external pressure.

Walsh Sr. left a recorded voicemail threatening Plaintiff's attorney with license revocation: "I will sure to go after your license." (Walsh Sr. recorded voicemail.)

53. The Enenstein firm withdrew in February 2020, citing an unspecified "conflict situation," while depositions against the Walsh family were actively scheduled and an abduction complaint was being drafted. (Enenstein firm withdrawal correspondence, February 2020; abduction complaint draft.)

54. RSSB Law withdrew in June 2022, stating: "We have a clear and unavoidable duty to withdraw." (RSSB Law withdrawal letter dated June 2022.)

55. DiFabio reported that blanket judicial recusals eliminated approximately two-thirds of his practice. (DiFabio correspondence.)

IV. CLAIMS FOR RELIEF

COUNT ONE

Deprivation of Procedural Due Process Under 42 U.S.C. § 1983

(Fourteenth Amendment)

56. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
57. The Fourteenth Amendment to the United States Constitution provides that no State shall deprive any person of life, liberty, or property without due process of law. A parent's right to the care, custody, and control of his child is a fundamental liberty interest protected by the Due Process Clause. *Troxel v. Granville*, 530 U.S. 57, 65 (2000); *Santosky v. Kramer*, 455 U.S. 745, 753 (1982).
58. Defendant Westchester County, acting under color of state law, deprived Plaintiff of his fundamental right to a relationship with his child through proceedings that lacked basic procedural protections. Specifically:
59. (a) False Default Characterization. The Westchester County Family Court entered orders restricting and ultimately severing Plaintiff's parental access on two separate occasions, each characterized as a "default" despite the presence of Plaintiff's counsel. The Appellate Division subsequently held that the second proceeding (November 5, 2021) was "not entered upon the father's default." (Exhibit A; Exhibit F; Morales-Horowitz hearing transcript.)
60. (b) Hearing Cancellation and Substitution. On November 4, 2021, the Court scheduled a virtual hearing for File 154703. On November 5, 2021, the virtual hearing was canceled and replaced with a default proceeding — without adequate notice to Plaintiff. (Teams meeting invitation and cancellation records.)
61. (c) Reliance on Discredited Evidence. The Court maintained the Griffin forensic evaluation as the factual foundation for custody restrictions even after Griffin's credential was

revoked by OASAS for fraud and gross negligence, and even after the presiding judge acknowledged on the record that Griffin was discredited. (Exhibit C; Exhibit D.)

62. (d) Protective Order Preventing Challenge. The Court placed the Griffin report under a protective order that prohibited Plaintiff and his counsel from viewing or quoting the evaluation, thereby preventing any meaningful challenge to the discredited evidence being used against Plaintiff. (Protective order dated May 14, 2019.)

63. (e) Irreconcilable Procedural Identity. A deprivation of parental rights grounded in a proceeding whose procedural identity cannot be consistently articulated by any actor in the system violates procedural due process. Five mutually exclusive characterizations — “on default” (trial court), “on default” (Walsh’s own counsel, as affirmative litigation concession), “not entered upon the father’s default” (Appellate Division), “after hearing” (court records, retroactively altered), and silence as to procedural basis (written order) — cannot simultaneously be true. Due process requires procedural clarity before fundamental rights may be restricted. The persistence of five conflicting classifications across five different institutional actors demonstrates structural breakdown in the adjudicative process. (Exhibit A; Exhibit F; Exhibit G; Exhibit H; Inquest Transcript, January 5, 2022; court docket comparison records.)

63A. (f) Judicial Estoppel and Record Alteration. Walsh’s own counsel conceded before the Appellate Division that the order was entered on default. The Appellate Division rejected that characterization. Walsh is now judicially estopped from claiming that a valid hearing occurred. Yet the court’s internal records were retroactively altered to reflect “after hearing” — the precise characterization that Walsh’s counsel had advanced and the Appellate Division had rejected — without judicial order, stipulation, or notice. This is

not clerical correction; it is the fabrication of a false procedural history designed to insulate defective orders from challenge. (Exhibit A; Exhibit G; Exhibit H; court docket comparison records.)

64. (g) Unconstitutional Conditions. On November 7, 2018, Judge Gordon-Oliver conditioned Plaintiff's access to his child on the waiver of criminal charges against Walsh — requiring Plaintiff to surrender a constitutional right as a precondition for exercising another. (Gordon-Oliver handwritten order dated November 7, 2018.)

64A. (h) Inquest Procedural Defects. The January 5, 2022 inquest that produced the permanent custody and protection orders was independently defective: no exhibits were admitted, cross-examination was precluded, electronic appearance was denied during COVID, and the sole witness was the adverse party. A proceeding that precludes a defense is not a hearing; a proceeding that enters permanent orders without evidence is not adjudication. (Inquest Transcript, January 5, 2022.)

65. As a direct and proximate result of these due process violations, Plaintiff has been deprived of his relationship with his child for approximately eight years, has incurred substantial legal expenses, and has suffered severe emotional distress. These injuries are ongoing: as of March 2026, support obligations based on the defective custody order continue to be enforced against Plaintiff through income withholding and arrears accumulation.

COUNT TWO

First Amendment Retaliation Under 42 U.S.C. § 1983

66. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.

67. The First Amendment to the United States Constitution, applicable to the states through the Fourteenth Amendment, protects a citizen's right to petition the government for redress and to engage in protected speech on matters of public concern.
68. Plaintiff engaged in constitutionally protected activity, including: (a) maintaining online publications documenting public records related to the custody proceedings; (b) filing complaints with the New York Judicial Conduct Committee regarding procedural irregularities; (c) filing a complaint with the FBI regarding wire fraud and related federal offenses; and (d) communicating with the press. (Whistleblower email to court administrator Eckel, August 7, 2021; JCC complaint, October 2021; FBI complaint; press communications.)
69. Following this protected activity, Defendant Westchester County, through its agents and officers, took adverse actions against Plaintiff, including:
70. (a) Gag Order. AFC Genovese initiated an Order to Show Cause on October 14, 2021, seeking restrictions on Plaintiff's online speech, blog content, and publications. The speech targeted by the Order to Show Cause was the same speech that formed the basis of Plaintiff's whistleblower complaints: the republication of public judicial records documenting the Griffin credential revocation, the false default characterizations, and the institutional failures Plaintiff had reported to court administrator Eckel and the Judicial Conduct Committee. The gag order did not target private communications or confidential materials; it targeted the specific public-record documentation that Plaintiff had used to seek institutional accountability. On February 2, 2022, the Court entered a gag order requiring Plaintiff to "erase, deactivate, and delete any existing blogs and likenesses." The Appellate Division subsequently found this order was not narrowly tailored and

constituted an unconstitutional prior restraint. (Genovese Order to Show Cause dated October 14, 2021; Exhibit A.)

70A. (b) Selective Enforcement. The gag order was enforced exclusively against Plaintiff.

During the period of the restraint, members of the Walsh family maintained public online commentary on the same underlying custody matter without court intervention.

Specifically: Tara Walsh's mother-in-law maintained a public blog discussing the custody proceedings; Walsh family associates published social media commentary referencing the case; and a media entity associated with Walsh family members acquired and operated a domain addressing the litigation. No enforcement action was taken against any of these publications. This selective enforcement — suppressing Plaintiff's speech while permitting substantially identical speech by adverse parties — constitutes viewpoint discrimination. A content-neutral justification for the gag order is negated by the fact that only one viewpoint was restrained. See *R.A.V. v. City of St. Paul*, 505 U.S. 377, 391 (1992); *Police Dep't of Chi. v. Mosley*, 408 U.S. 92, 96 (1972).

71. (c) Removal of Favorable Witnesses. After independent CFS supervisors submitted reports documenting a strong bond between Plaintiff and E.R., those supervisors were removed and replaced with individuals connected to disclosed conflicts of interest. (Tedla deposition; CFS supervisor reports; Gootzeit appointment records.)

72. (d) Retention of Discredited Evaluation. Despite judicial acknowledgment that Griffin was discredited, the Court retained the Griffin evaluation in the record as a permanent basis for restricting Plaintiff's parental access — silencing Plaintiff's factual challenges to the evaluation by maintaining the protective order. (Exhibit D; protective order dated May 14, 2019.)

73. The temporal proximity between Plaintiff's protected speech and the adverse actions establishes a causal connection sufficient to state a claim for First Amendment retaliation. Plaintiff's "Whistleblower" email to court administrator Eric Eckel was sent on August 7, 2021 — approximately 90 days before the November 5, 2021 default proceeding. Plaintiff's JCC complaint letter was forwarded on October 20, 2021 — 16 days before the proceeding. (Whistleblower email dated August 7, 2021; JCC complaint forwarded October 20, 2021.)
74. As a direct and proximate result of this retaliation, Plaintiff's constitutionally protected speech was suppressed, his online publications documenting public records were ordered destroyed, and his efforts to seek institutional accountability were punished with the loss of parental access.

Public Record Nature of Restrained Speech

75. The content targeted by the gag order consisted exclusively of publicly available judicial records, legislative testimony, and government agency actions — none of which were sealed, none of which were authored by Plaintiff, and all of which were already part of the public record at the time the speech restriction was imposed. A complete index of these materials is attached as Exhibit E.
76. The materials restrained include, but are not limited to: OASAS credential revocation records (public administrative proceedings); Appellate Division decisions (published opinions); California jury verdicts and amended judgments (public court records); Journal News reporting on the Griffin credential revocation (published journalism); New York State legislative testimony regarding forensic evaluator reform (public government

proceedings); and court docket entries and filed motions (public judicial records). (See Exhibit E for complete index.)

77. No court has found, and no party has alleged, that any of the restrained materials contain sealed information, confidential attorney-client communications, or information harmful to the minor child. The gag order operated as a prior restraint on the republication of materials that any member of the public could independently obtain from court clerks, government databases, and published news sources.
78. The restrained speech concerned matters of public concern: the credentialing of court-appointed forensic evaluators, the integrity of judicial proceedings, and the institutional response to documented misconduct. The speech addressed judicial conduct and credentialing reform — subjects at the core of the First Amendment’s protection of citizen participation in governance. The speech consisted of truthful republication of public judicial records, which lies at the core of First Amendment protection. See *Cox Broadcasting Corp. v. Cohn*, 420 U.S. 469 (1975). The speech did not disclose confidential child information, sealed materials, or attorney-client communications.
79. A prior restraint on speech is presumptively unconstitutional. *Nebraska Press Ass’n v. Stuart*, 427 U.S. 539, 559 (1976). The gag order here went beyond a traditional prior restraint: it compelled the destruction of previously published speech by requiring Plaintiff to “erase, deactivate, and delete any existing blogs and likenesses.” Compelled deletion of truthful, lawful speech is among the most disfavored forms of prior restraint in American jurisprudence. Unlike a traditional injunction prohibiting future speech, this order compelled the destruction of already-published lawful speech — a remedy more severe than most prior restraints reviewed by the Supreme Court. See *Organization for a Better*

Austin v. Keefe, 402 U.S. 415, 419 (1971). Content-based restrictions on speech are subject to strict scrutiny and survive only if the government demonstrates a compelling interest and the restriction is narrowly tailored. Reed v. Town of Gilbert, 576 U.S. 155, 163 (2015). The gag order failed both requirements: no compelling interest was identified, and the Appellate Division found the order was not narrowly tailored. (Exhibit A.)

80. The compelled deletion of truthful public records is not merely a restraint on speech; it is compelled silence imposed after speech has already entered the public domain. The Supreme Court has never upheld such a remedy.
81. The constitutional question presented is whether a state court may impose a prior restraint on a litigant's republication of public judicial records concerning matters of public concern. The Appellate Division has already answered this question in the negative by finding the gag order was not narrowly tailored. (Exhibit A.) The federal question is whether the initiation and enforcement of such a restraint, targeting a party who had filed complaints about institutional misconduct, constitutes First Amendment retaliation actionable under § 1983.
82. This case presents a recurring constitutional question at the intersection of family court proceedings and public oversight: whether courts may silence a litigant for documenting the public record of their own case. The answer, under the First Amendment, is no — absent specific findings, supported by evidence, that the speech poses a clear and present danger to an interest the government is entitled to protect.

83. Plaintiff is entitled to a declaration that the republication of public judicial records cannot be restrained absent such findings and that any future restraint must comply with strict scrutiny under the First Amendment.

COUNT THREE

Monell Liability Under 42 U.S.C. § 1983

(Municipal Policy, Custom, or Practice)

84. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.

85. Under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), a municipality may be held liable under § 1983 when the constitutional violation was caused by an official policy, widespread custom or practice, or a decision by a final policymaker.

86. Defendant Westchester County, through its Family Court system, maintained policies, customs, and practices that caused the constitutional violations alleged herein, including:

87. (a) Failure to Credential-Verify Court-Appointed Forensic Evaluators. Westchester County had no policy or procedure requiring verification of the professional credentials of court-appointed forensic evaluators before their reports were admitted and relied upon as the basis for restricting fundamental parental rights. Dr. Raymond Griffin held CASAC Credential No. 1636, which was summarily suspended by OASAS on July 29, 2019, and revoked on August 16, 2019, for nine specific grounds including: grossly negligent handling of toxicology testing, submission of falsified documentation, unauthorized practice of medicine, and exploitation of patients. (Exhibit C.) Griffin's misconduct was not limited to this case. In January 2020, attorney Max DiFabio identified the Veneziano

matter as another family harmed by Griffin's evaluations, and the Journal News reported that Griffin's findings had cost a parent custody for seven months. (DiFabio correspondence re Veneziano matter, January 2020; Journal News reporting.) Yet at the time of Griffin's appointment and throughout his engagement, no credential verification was performed. The absence of any credential-verification safeguard was the moving force behind the admission and continued reliance on a fraudulent evaluation as the operative standard for Plaintiff's parental access.

88. (b) Custom of Maintaining Discredited Evaluations as Permanent Gatekeeping Mechanisms.

After Griffin's credential was revoked and a presiding judge acknowledged on the record that Griffin was "a fake doctor" whose work had harmed families (Exhibit D), the County maintained his evaluation as the factual foundation for custody restrictions. The County simultaneously maintained a protective order preventing Plaintiff and his counsel from viewing, copying, or quoting the evaluation — thereby preventing any challenge to the discredited evidence. (Protective order dated May 14, 2019.) This custom of retaining discredited forensic evaluations as permanent, unchallengeable bases for restricting fundamental rights, rather than striking them upon credential revocation, reflects deliberate indifference to constitutional requirements.

89. (c) Failure to Supervise Court-Appointed Officers. Westchester County appointed

supervisors with disclosed conflicts of interest, including Delia Farquharson, who was connected to a federal IRS investigation involving Elias Gootzeit, whom a presiding judge also attempted to appoint as a supervisor. (Gootzeit appointment records and IRS investigation documentation.) The County failed to investigate or address these conflicts when brought to the Court's attention and failed to monitor whether court-appointed

officers were conducting ex parte communications with parties. (Ex parte communication records.)

90. These policies, customs, and practices were the moving force behind the deprivation of Plaintiff's constitutional rights. Westchester County entrusted the restriction of fundamental parental rights to individuals whose professional qualifications were never verified, despite the foreseeable risk that unlicensed or fraudulent evaluators could distort custody outcomes. The absence of even minimal credential verification safeguards constitutes deliberate indifference to constitutional rights. This is not a single employee's error; it is the absence of any institutional mechanism to verify that persons whose evaluations serve as the basis for restricting fundamental liberty interests actually hold the credentials they claim. This institutional gap caused harm to multiple families across multiple proceedings.

90A. The final policymaker for purposes of Monell liability is the Administrative Judge of the Ninth Judicial District, who possesses authority over the credentialing, appointment, and oversight of court-appointed forensic evaluators within Westchester County Family Court. The Administrative Judge had the authority to adopt and enforce a credential-verification protocol for court-appointed evaluators but failed to do so, despite the foreseeable risk that unverified evaluators could produce fraudulent reports forming the basis for the restriction of fundamental liberty interests. This failure constitutes a decision by a final policymaker that is attributable to the municipality under Monell. See *Pembaur v. City of Cincinnati*, 475 U.S. 469, 483 (1986); *City of St. Louis v. Praprotnik*, 485 U.S. 112, 127 (1988).

COUNT FOUR

Extrinsic Fraud on the Court

91. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
92. Under the doctrine of extrinsic fraud, a judgment or order procured through fraud that prevents a party from fully and fairly presenting his case may be challenged in federal court as an independent constitutional violation. *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238 (1944); *Chambers v. NASCO, Inc.*, 501 U.S. 32 (1991). This claim is not barred by the Rooker-Feldman doctrine because it challenges the integrity of the process by which state court orders were obtained, not the merits of those orders.
93. The Westchester County Family Court proceedings were procured through extrinsic fraud that prevented Plaintiff from fully and fairly presenting his case, including:
94. (a) Fraudulent Jurisdictional Predicate. Emergency jurisdiction was obtained through an allegation that Plaintiff threatened to kill Walsh and the child — an allegation Walsh herself recanted in writing to the Chappaqua Police Department and contradicted in earlier text messages acknowledging that the weapon allegation was fabricated. (Walsh recantation letter dated November 23, 2020; Walsh texts to Narendra dated May 17, 2018; Exhibit I.)
95. (b) Fraudulent Interstate Removal. The child was removed from California to New York under the pretext of a temporary visit, as documented by the Walsh Sr. email confirming temporary terms and a round-trip airline ticket. Plaintiff's own counsel at the Enenstein firm drafted an abduction complaint identifying evidence that the Walsh family "knew all along" they intended to permanently retain the child in New York. (Walsh Sr. email dated June 8, 2018; Enenstein firm abduction complaint draft.)

96. (c) Fraudulent Forensic Evidence. The Court relied on the Griffin evaluation as the factual foundation for custody orders despite the evaluator's subsequent credential revocation for fraud and gross negligence. The evaluation was shielded from challenge by a protective order and retained in the record after the evaluator's disqualification was acknowledged on the record. (Exhibit C; Exhibit D; protective order dated May 14, 2019.)
- 96A. (d) UCCJEA Jurisdiction Fraud. California was the child's home state under DRL § 76(1). New York's emergency jurisdiction under DRL § 76-c was predicated on the gun threat allegation that Walsh recanted. Once the emergency predicate was vitiated by Walsh's own recantation, New York was required to communicate with California regarding jurisdiction under DRL § 75-g and, absent a continuing emergency, to decline jurisdiction or defer to the home state under DRL § 76-a. No such communication occurred. The jurisdictional predicate was fraudulent from inception and was never cured. (Walsh recantation letter; California custody filing.)
- 96B. (e) Failure to Conduct Mandatory Domestic Violence Inquiry. DRL § 240(1)(a) requires that in any custody proceeding, the court "shall consider the effect of domestic violence upon the best interest of the child." A California jury found Walsh liable for battery, domestic violence, and intentional infliction of emotional distress with findings of malice, oppression, and fraud. LabCorp toxicology confirmed covert drug administration. Despite this adjudicated domestic violence, no DRL § 240 inquiry was ever conducted by the Westchester County Family Court, and the California findings were never examined in the custody determination. (Jury verdict, CGC-18-570137; LabCorp toxicology report.)

97. These acts of extrinsic fraud prevented Plaintiff from fully and fairly presenting his case. The fraudulent jurisdictional predicate deprived California of its primary jurisdiction. The fraudulent forensic evidence became the permanent basis for custody restrictions that could not be challenged. The failure to conduct a mandatory domestic violence inquiry suppressed adjudicated evidence of Walsh's violence. Together, they undermined the integrity of the adjudicative process by which the resulting orders were obtained. When jurisdiction is invoked on recanted allegations, evidentiary gatekeeping is performed by a disqualified evaluator shielded from challenge, and adjudicated domestic violence is ignored, the process ceases to function as an adversarial adjudication and becomes structurally compromised.

98. Plaintiff is entitled to a declaration that proceedings obtained through extrinsic fraud undermined the integrity of the adjudicative process and that the process by which state court orders were obtained was fundamentally compromised.

V. DAMAGES

99. As a direct and proximate result of Defendant's actions, Plaintiff has suffered the following damages:

100. Loss of Parental Relationship. Plaintiff has been substantially deprived of his relationship with his child for approximately eight years (2018–2026), encompassing the developmental period from age one through age nine. This deprivation of a fundamental liberty interest constitutes irreparable harm.

101. Economic Damages. Plaintiff has incurred substantial legal fees and costs across multiple law firms and jurisdictions, including costs associated with the California custody action,

the San Francisco battery action, the New York Family Court proceedings, and appellate proceedings. Plaintiff has additionally incurred costs for cross-country travel, forensic evidence extraction, and toxicology testing. The total economic damages arising from the unconstitutional procedural deprivations and reliance on discredited forensic evidence alleged herein will be established at trial.

102. Emotional Distress. Plaintiff has suffered severe emotional distress as a result of: the loss of his child's daily presence; the knowledge that orders restricting his parental access were based on discredited evidence and recanted allegations; the experience of multiple attorneys withdrawing under external pressure; and the alteration of judicial records concerning proceedings in which he was a party.

103. Reputational Harm. The entry of protective orders based on false allegations of threats has caused damage to Plaintiff's personal and professional reputation.

103A. Ongoing Injury. The injuries alleged are ongoing and not limited to past custody determinations. As of the date of this filing, support obligations predicated on the defective custody order are being actively enforced through income withholding. These enforcement actions generate continuing constitutional injury within the limitations period.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Stephen Grant Russell respectfully requests that this Court enter judgment in his favor and against Defendant Westchester County, and grant the following relief:

104. Declaratory Relief. A declaration pursuant to 28 U.S.C. §§ 2201–2202 that: (a) Westchester County's failure to credential-verify court-appointed forensic evaluators violated

Plaintiff's procedural due process rights under the Fourteenth Amendment; (b) the gag order restricting Plaintiff's republication of public judicial records violated the First Amendment, as already determined by the Appellate Division; (c) orders predicated on the discredited Griffin evaluation are constitutionally infirm; and (d) proceedings predicated on extrinsic fraud, including the recanted threat allegation and the fraudulent interstate removal, were constitutionally infirm.

105. Additional Declaratory Relief. (a) A declaration that continued reliance on the Griffin evaluation as a basis for restricting Plaintiff's parental rights violates due process; and (b) a declaration that Westchester County's absence of credential verification procedures for court-appointed forensic evaluators constitutes deliberate indifference to constitutional rights.
106. Injunctive Relief. An injunction enjoining Defendant from further retaliatory actions against Plaintiff's exercise of his First Amendment rights, including the imposition of speech restrictions on the republication of public judicial records.
107. Compensatory Damages. An award of compensatory damages in an amount to be determined at trial for the deprivation of Plaintiff's fundamental liberty interests, economic losses, emotional distress, and reputational harm.
108. Costs and Expenses. An award of litigation costs and expenses as permitted by law, and attorneys' fees pursuant to 42 U.S.C. § 1988 in the event Plaintiff retains counsel.
109. Such Other Relief. Such other and further relief as this Court deems just and proper.

VII. DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable pursuant to the Seventh Amendment to the United States Constitution and Rule 38 of the Federal Rules of Civil Procedure.

VERIFICATION

I, Stephen Grant Russell, declare under penalty of perjury that I am the Plaintiff in this action, that I have read the foregoing Complaint, and that the factual allegations contained therein are true and correct to the best of my knowledge, information, and belief.

Dated: _____, 2026

Stephen Grant Russell, Pro Se [Address] [Phone] [Email]

EXHIBIT INDEX

Exhibit	Description	Source
A	Appellate Division Opinion, 214 A.D.3d 890 (2d Dep't 2023)	Published opinion
B	February 2, 2022 Order (Gag Order / Custody)	Court file
C	OASAS Revocation Summary (Griffin CASAC #1636)	OASAS records
D	Transcript Excerpt — Schauer Hearing, Aug. 27, 2021 ("fake doctor")	Certified transcript
E	Public Record Index (PR-1) — Index of restrained materials	Plaintiff's compilation
F	Default Proceeding Records, November 5, 2021	Court file
G	Respondent's Brief, Appeal No. 2022-02838 (Weddle, Oct. 2022), pp. 3-4 — Walsh's counsel's affirmative concession that the order was "issued on default"	Appellate Division file

H	Bowman Hearing Transcript Excerpt, February 3, 2026 — "custody was granted after hearing"; court declines to examine jurisdictional defect	Certified transcript
I	Walsh Recantation Letter to Chappaqua PD, November 23, 2020	Police records